SREENIDHI MODEL UNITED NATIONS

SMUN 2026 | COMMITTEE BACKGROUND GUIDE

UNITED NATIONS OFFICE ON DRUGS AND CRIME

UNODC

United Nations Office on Drugs and Crime

COMMITTEE AGENDA

Strengthening International Cooperation to Combat Human Trafficking and Migrant Smuggling, with Special Emphasis on Victim Protection and Cross-Border Enforcement

Human Dignity • Justice • International Cooperation

Message from the Secretariat

Dear Delegates,

Welcome to Sreenidhi Model United Nations 2026. The Secretariat is pleased to welcome you to the United Nations Office on Drugs and Crime, where you will consider the urgent international challenges of trafficking in persons and migrant smuggling.

These issues demand both a rigorous criminal-justice response and an unwavering commitment to human dignity. Trafficking and smuggling networks exploit gaps in cooperation between jurisdictions, while victims, survivors and migrants may face violence, coercion, dangerous journeys and serious obstacles in accessing protection and justice. Responsible policymaking must distinguish these offences and recognise the rights of the people affected.

This Background Guide introduces UNODC and its mandate, explains the agenda and its historical and legal foundations, and examines current challenges, international responses and practical avenues for cooperation. It is intended as a starting point for research rather than a substitute for investigating the actual laws, commitments and diplomatic positions of your assigned Member State.

We encourage delegates to combine careful legal analysis with informed diplomacy. Proposals should be realistic, attentive to national capacities and supported by credible evidence, while safeguarding victims and ensuring that enforcement does not expose vulnerable individuals to additional harm.

We look forward to constructive negotiations, substantive debate and thoughtful proposals directed towards a more just and cooperative international response.

Warm regards,
The Secretariat
Sreenidhi Model United Nations 2026

Contents

Message from the Secretariat 2

Contents 3

01 Introduction to the Committee 4

02 Introduction to the Agenda 5

03 Explanation of the Agenda 6

04 Reference Links and Resources 11

05 Questions to Consider 12

A guide to informed research, effective criminal-justice cooperation and the protection of vulnerable people.

01 Introduction to the Committee

The United Nations Office on Drugs and Crime (UNODC) is the United Nations entity at the forefront of international efforts against illicit drugs, transnational organised crime, corruption and terrorism. Established in 1997, it assists Member States in translating international commitments into effective national legislation, institutional capacity and practical cooperation. Its work combines research and analysis, normative assistance, training, criminal-justice reform and operational support to competent national authorities.

Unlike a national police agency or international court, UNODC does not independently arrest suspects, prosecute offences or adjudicate criminal liability. Its value lies in connecting legal standards with the people and institutions responsible for enforcing them: governments, investigators, border authorities, prosecutors, judicial officials, civil society and victim-support organisations. This distinction should shape the recommendations advanced in committee.

UNODC's role in preventing trafficking and smuggling

The Office serves as a principal custodian of the United Nations Convention against Transnational Organized Crime (UNTOC) and assists States in implementing its supplementary protocols on trafficking in persons and smuggling of migrants. It supports legislative alignment, specialised investigation, international cooperation, victim identification, protection services and more reliable criminal-justice data. Through training and guidance, it also helps governments distinguish two offences that are frequently confused in public discussion but require different legal and protection responses.

The significance of this committee is consequently both criminal-justice oriented and humanitarian. A response that secures convictions but overlooks survivors may leave exploitation unaddressed; an assistance programme unsupported by effective investigations may allow networks to continue operating. Delegates must consider how both objectives can reinforce one another.

"There can be no lasting peace without justice." — Denis Mukwege, Nobel Peace Prize lecture, 2018

02 Introduction to the Agenda

The agenda examines how countries of origin, transit and destination can coordinate to prevent human trafficking and migrant smuggling, dismantle organised criminal networks and protect the people exposed to exploitation, abuse and dangerous journeys. It recognises that criminal networks may recruit in one country, move people through another, exploit them in a third and move illicit proceeds through additional jurisdictions. No single State necessarily possesses all the evidence, jurisdiction or institutional resources needed to respond.

Migration itself is not synonymous with criminality, and neither trafficking nor smuggling can be understood simply as a question of border control. Poverty, conflict, displacement, discrimination, labour demand, misinformation and the absence of safe opportunities can create vulnerabilities that criminals exploit. Effective policies therefore require prevention, lawful and proportionate enforcement, victim-centred assistance, financial investigations and international legal cooperation.

Why the issue demands renewed attention

Trafficking takes many forms, including forced labour, sexual exploitation, domestic servitude, forced criminal activity and exploitation of children. Smuggling may expose migrants to extortion, abandonment, unsafe transport and physical or sexual violence, even where exploitation was not the original purpose of the journey. Digital recruitment platforms, encrypted communications and cross-border payment methods can make illicit operations harder to detect and attribute.

The UNODC Global Report on Trafficking in Persons 2024 recorded a 25 per cent increase in detected trafficking victims in 2022 compared with 2019. This statistic describes detections rather than the total prevalence of trafficking; changes in identification, reporting and enforcement also affect recorded numbers. Delegates should treat such evidence carefully and avoid drawing broader conclusions than the underlying data can support.

The core policy challenge is to improve the ability of States to identify and prosecute offenders without turning vulnerable people into collateral casualties of enforcement. The agenda calls for a response that is coordinated across borders, sensitive to individual rights and feasible for countries with differing institutional capacities.

03 Explanation of the Agenda

3.1 Historical Context: From International Commitments to Modern Criminal Networks

International cooperation against trafficking and exploitation developed long before contemporary cross-border criminal markets. Early twentieth-century agreements addressed particular forms of trafficking, while subsequent human rights instruments prohibited slavery, servitude and forced labour. The Universal Declaration of Human Rights (1948), the Convention on the Rights of the Child (1989), and relevant international labour standards helped establish the principles of human dignity and protection that continue to inform modern responses.

The growth of transnational migration, global recruitment markets and organised crime prompted States to negotiate a more comprehensive framework. In 2000, the United Nations Convention against Transnational Organized Crime and its supplementary protocols on trafficking in persons and migrant smuggling were adopted. These instruments established internationally agreed definitions and cooperation mechanisms, while recognising the distinct legal character of exploitation and the facilitation of irregular entry for material benefit.

Since then, changes in communications, financial systems, conflict patterns and mobility have required law enforcement and protection agencies to adapt. Historical experience demonstrates that punitive border measures alone are insufficient: effective prevention also depends on labour protections, access to reliable information, safe identification procedures and international coordination.

3.2 Understanding the legal distinction: trafficking and smuggling

Article 3 of the Trafficking in Persons Protocol identifies three central components in the trafficking of adults: an act (such as recruitment, transportation, transfer, harbouring or receipt), a prohibited means (such as force, coercion, fraud, deception or abuse of vulnerability), and a purpose of exploitation. Where one of the prohibited means is used, an adult victim’s purported consent does not negate the trafficking offence. In the case of children, the prohibited-means element is not required; an act carried out for exploitation is sufficient under the Protocol definition.

Under the Smuggling of Migrants Protocol, smuggling concerns procuring the illegal entry of a person into a State of which that person is neither a national nor a permanent resident in order to obtain a financial or other material benefit. It is therefore conceptually focused on profit-driven facilitation of illegal entry, not necessarily on exploitation as its defining purpose. Importantly, trafficking need not involve crossing an international border: it may occur wholly within one country.

The distinction must not become an artificial barrier to protection. A person initially smuggled may subsequently be trafficked, and smugglers may perpetrate other offences against migrants. Authorities need screening procedures that assess the actual circumstances rather than rely solely on an individual's migration status.

3.3 Patterns of exploitation and the causes of vulnerability

Traffickers may use false employment offers, debt bondage, confiscation of identity documents, threats against family members or abuse of immigration status to establish control. Exploitation may occur in agriculture, fishing, construction, domestic work, manufacturing, informal commerce and illicit enterprises. Recruitment and exploitation can be organised by complex criminal groups or smaller, less visible networks, and may involve apparently legitimate businesses.

Risk factors differ across populations and regions. Children separated from caregivers, people displaced by conflict, migrant workers dependent on recruiters, and individuals facing severe economic insecurity may have limited access to trustworthy information and remedies. Prevention therefore requires scrutiny of recruitment practices, accessible education and reporting, labour inspection, social protection and programmes addressing underlying vulnerability.

3.4 Victim identification, assistance and access to justice

Victims may avoid authorities because of trauma, language barriers, fear of reprisals, distrust of institutions, or concerns about immigration enforcement. First responders should be trained to recognise indicators of coercion, exploitation and trafficking, including situations where a person does not immediately self-identify as a victim. Confidential referral systems should connect individuals with safe accommodation, healthcare, psychological support, interpretation, legal advice and safeguarding services.

Assistance should be informed by safety and individual needs, including those of children and survivors of sexual violence. States should examine appropriate residence arrangements, witness protection, compensation mechanisms and remedies, subject to applicable law. Special care is required to avoid secondary victimisation through repeated questioning, unsafe disclosure of personal information or unnecessary exposure to suspected traffickers. A victim-centred approach should not make basic protection entirely dependent on a person's willingness or immediate ability to testify.

"I call for a march from exploitation to education ... a march from slavery to liberty." — Kailash Satyarthi, Nobel Peace Prize lecture, 2014 (excerpt)

3.5 Cross-border investigations and judicial cooperation

A trafficking or smuggling investigation may involve witnesses, communications records, recruitment documents, banking information and suspects located in multiple countries. Different standards for evidence, data retention, privacy, dual criminality and extradition can prevent investigators from assembling a coherent case. Mutual legal assistance, extradition arrangements where applicable, direct law-enforcement contact, joint or coordinated investigations and secure evidence-preservation processes can bridge these gaps.

However, cooperation is only effective when requests are specific, lawful and timely. Delegates should address the designation of national contact points, standardised request templates, language and translation assistance, secure information channels, chain-of-custody procedures and safeguards for the rights of persons whose information is exchanged. UNODC can support States in building these capabilities; executive enforcement powers remain with the relevant national authorities.

3.6 Financial investigations, corruption and criminal markets

Trafficking and smuggling are sustained by financial incentives. Following payments to facilitators, recruiters and intermediaries may reveal connections that witness testimony alone cannot establish. Financial-intelligence cooperation, suspicious-transaction reporting under applicable domestic law, asset tracing and confiscation, and scrutiny of corrupt facilitation can disrupt criminal networks. Measures should be compatible with due process, proportionality, privacy and applicable safeguards for legitimate transactions.

Corruption may enable fraudulent travel documents, obstruct investigations or shield exploitation. An effective strategy must therefore address integrity within police, border, labour, immigration and judicial institutions, alongside stronger oversight of recruitment agencies and businesses operating in sectors associated with heightened exploitation risks.

3.7 Protecting children, refugees and other vulnerable migrants

Children require age-appropriate interviews, trained guardianship or child-protection support where relevant, and procedures guided by their best interests. Trafficking screening must distinguish child protection needs from ordinary immigration or criminal processing. The Convention on the Rights of the Child provides a wider legal basis for safeguarding children against exploitation and for ensuring suitable care and protection.

Refugees, asylum seekers and displaced persons may face overlapping risks. Anti-smuggling policies should be developed consistently with applicable refugee law, human rights duties and the principle of non-refoulement where relevant. A migrant's irregular status does not extinguish basic human rights, and action against criminal organisers should not be equated with automatic punishment of the people they transport.

3.8 Current Challenges: Technology, Displacement and Enforcement Gaps

Trafficking networks increasingly exploit online advertising, recruitment platforms, encrypted communications and complex payment channels. False job opportunities, debt arrangements and document confiscation can conceal exploitation within apparently legitimate labour markets. Digital tools may facilitate criminal conduct but can also assist investigators when used lawfully, with appropriate privacy and evidentiary safeguards.

Conflict, climate-related displacement, economic hardship and the absence of safe migration options can magnify risks. In some settings, individuals exposed to smuggling routes experience serious violence or become vulnerable to trafficking during or after their journeys. States may also face practical constraints involving insufficient victim services, uneven training, corruption, incompatible data systems and delays in obtaining evidence from foreign jurisdictions.

The challenge is therefore not merely to increase arrests, but to improve victim identification, evidence-led prosecutions, protection from retaliation and access to effective remedies. Delegates should evaluate cross-border initiatives for their operational feasibility and potential consequences for children, refugees and other vulnerable individuals.

3.8 The international legal and institutional framework

United Nations Convention against Transnational Organized Crime (2000)

UNTOC establishes the overarching international cooperation framework for combating transnational organised crime. Among other matters, it addresses criminalisation of certain conduct, mutual legal assistance, extradition, law-enforcement cooperation and measures relating to criminal proceeds. Its relevance depends on the terms of the Convention, the facts of the offence and a State's treaty commitments.

Trafficking in Persons Protocol and Smuggling of Migrants Protocol (2000)

The Trafficking Protocol directs attention to prevention, criminalisation, victim assistance and cooperation; the Smuggling Protocol addresses the procurement of illegal entry for financial or other material benefit, enforcement cooperation and protection of smuggled migrants' rights. Reading both instruments together helps States avoid an undifferentiated enforcement strategy.

Related human rights and anti-corruption instruments

The Convention on the Rights of the Child, relevant international labour standards, the United Nations Convention against Corruption and applicable international human rights and refugee law each address important dimensions of exploitation, institutional accountability and the protection of vulnerable people. Delegates should verify the ratification status, reservations and domestic implementation of instruments applicable to their assigned States.

Division of institutional responsibilities

UNODC provides technical assistance, research and legislative guidance; the International Organization for Migration contributes migration-related support and protection work; the International Labour Organization addresses forced labour and labour standards; the Office of the High Commissioner for Human Rights and relevant human rights mechanisms promote rights-based approaches; and national authorities exercise criminal-justice powers. Effective coordination should respect these differentiated mandates rather than create unnecessary duplication.

3.10 Current International Response and Opportunities for Cooperation

UNODC assists States in implementing UNTOC and its protocols through legislative guidance, technical assistance, data analysis and capacity-building. Its Global Reports on Trafficking in Persons inform policy discussions through documented trends in detected cases, while the Inter-Agency Coordination Group against Trafficking in Persons (ICAT) promotes coordination among relevant international bodies. These activities complement national enforcement rather than replacing the powers of domestic authorities.

The International Organization for Migration contributes migration-related support and protection work; the International Labour Organization addresses forced labour and fair recruitment; and relevant United Nations human rights bodies advance standards of dignity, non-discrimination and access to justice. Cooperation among States can include mutual legal assistance, appropriate extradition arrangements, joint investigations, cross-border referral pathways, financial intelligence and technical support for frontline authorities.

A workable international response should incorporate survivor-centred assistance, child-sensitive safeguards, secure evidence-sharing, anti-corruption measures and indicators extending beyond prosecution counts. Delegates should differentiate legally binding treaty obligations from non-binding guidance and identify the competent institutions responsible for implementing each proposal.

3.11 Towards a workable framework for international cooperation

Strong committee proposals should combine immediate and longer-term measures. Immediate action may involve standardised victim-screening protocols, trusted points of contact, safe referrals, joint investigative training and rapid preservation of cross-border evidence. Longer-term measures may include harmonising core offence definitions, strengthening judicial assistance, improving recruitment oversight, building financial-investigation capacity and collecting more comparable data.

Every proposal should identify who will implement it, the legal authority required, how it will be funded and how outcomes will be measured. Useful indicators include the quality of victim identification and assistance, the safety and accessibility of referral pathways, the timeliness of cooperation requests, prosecution outcomes and the reduction of repeated exploitation—not simply arrests or border interceptions.

04 Reference Links and Resources

The following reference links have been retained from the original UNODC background document. Delegates should prioritise primary sources for treaties and country positions and verify the context and publication dates of all reports.

01. United Nations Office on Drugs and Crime (UNODC)

Official information on trafficking in persons, migrant smuggling, transnational organised crime, criminal justice and international cooperation.

02. UNODC - Human Trafficking and Migrant Smuggling

Educational resources on the definitions, legal frameworks, investigative approaches and protection issues associated with trafficking and smuggling.

03. Office of the United Nations High Commissioner for Human Rights (OHCHR)

Human rights standards and research concerning migrants, victims of trafficking, remedies and safeguards.

04. International Organization for Migration (IOM)

Migration governance, protection of vulnerable migrants and international cooperation.

05. United Nations High Commissioner for Refugees (UNHCR)

Refugee protection, asylum, displacement and the risks of trafficking and exploitation.

06. Reuters

Current reporting on investigations, migrant smuggling, trafficking cases, border policy and international developments.

07. International Labour Organization (ILO)

Research and international standards concerning forced labour, fair recruitment and labour exploitation.

08. United Nations Treaty Collection

Official treaty texts, ratification status, accessions and national commitments.

09. United Nations Convention against Transnational Organized Crime and Its Protocols

Core international instruments for criminal-justice cooperation against transnational organised crime, trafficking and smuggling.

10. Inter-Agency Coordination Group against Trafficking in Persons (ICAT)

Resources on inter-agency coordination, victim-centred approaches and international anti-trafficking policy.

05 Questions to Consider

The following questions are intended to guide country research, moderated debate and the drafting of realistic, implementable resolutions. Delegates should substantiate their positions using applicable treaty obligations, national law, official statements and credible evidence.

01. How does international law distinguish trafficking in persons from migrant smuggling, and how should this distinction influence national enforcement and protection policies?

02. Which patterns of exploitation and smuggling are most relevant to the assigned State as a country of origin, transit or destination?

03. What legal, economic and institutional conditions create vulnerability to traffickers and smugglers, and which prevention measures address them most effectively?

04. How can victim identification be improved at borders, workplaces and within criminal-justice systems without endangering individuals or denying due process?

05. What minimum safeguards, referral pathways and assistance services should be available to trafficking survivors, including those unable or unwilling to participate immediately in prosecutions?

06. How can States protect children, refugees and displaced persons while conducting lawful border management and criminal investigations?

07. What obstacles impede mutual legal assistance, evidence sharing, extradition and coordinated investigations across jurisdictions?

08. What privacy, data-security and chain-of-custody safeguards should govern the exchange of personal information and digital evidence?

09. How can States detect and disrupt illicit financial flows, corrupt facilitation and abusive recruitment networks without burdening legitimate migration and commerce?

10. What roles should UNODC, IOM, ILO, national agencies and civil society each perform, and how can duplication be avoided?

11. What technical assistance and financing would enable States with limited investigative or victim-protection capacity to implement proposed reforms?

12. How should delegations balance sovereign enforcement prerogatives with international cooperation, fundamental rights and relevant non-refoulement obligations?

13. Which measurable indicators should determine whether an initiative protects people and weakens criminal networks rather than merely increasing arrests?

14. Which commitments is the assigned country already bound by, and which proposed actions require legislation, treaties or additional national consent?